

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: September 11, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER REQUIRING RESPONDENT TO FILE MOTION FOR CONFIDENTIAL TREATMENT

1. Introduction

On September 10, 2026, Respondent filed Respondent Top Shipping Systems, Corp's Opposition Brief ("Response"), Respondent Top Shipping Systems, Corp's Proposed Findings of Fact ("RPFF"), Respondent's Responses to Complainant's Proposed Findings of Fact ("RCPFF"), as well as a public Appendix and confidential Appendix.

Respondent did not file a motion for confidential treatment justifying the confidential treatment of the appendix. As discussed below, Respondent will need to file a motion for confidential treatment. Before doing so, Complainant and Respondent should confer regarding which proposed redactions are necessary, if any.

2. Applicable Rules

a. The Initial Order

The Initial Order was issued on June 23, 2025. It contains instructions that the parties must follow throughout the course of the proceeding. With respect to confidential material, the order sets forth separate rules that are applicable to the designation of confidential material for use in discovery and for use in a proceeding. With respect to use in discovery, ¶ 31 of the Initial Order provides:

Stipulation – The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.

(Initial Order, at 7).

With respect to use in a proceeding, ¶ 32 of the Initial Order provides:

Use in the proceeding – If confidential information is filed in a memorandum or as an exhibit to a dispositive motion or as part of briefing on the merits, it must be accompanied by a motion justifying confidential treatment. This motion must identify each item for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information. 46 C.F.R. § 502.141(j)(1). The burden is on the party seeking to protect the information to show good cause for its protection.

(Initial Order, at 7).

With respect to the marking of confidential material, ¶ 35 provides:

Marking confidential material – In the confidential version, the confidential information must be conspicuously and clearly marked on each page, for example by outlining, highlighting, boxes, or braces. The public version must clearly indicate any omissions, for example with blackout or braces. Pagination and depiction of text on each page must be identical to that of the confidential version. For example, the confidential filing may read: “On January 1, 2010, Complainant entered into a {25} year lease with respondent for a monthly rent of {\$1000}.” The public version would read: “On January 1, 2010, Complainant entered into a { } year lease with Respondent for a monthly rent of { }.” Only confidential numbers or words should be marked as confidential in the confidential version and thus redacted in the public version, not entire sentences. Improperly marked filings may be rejected.

(Initial Order, at 7-8).

As for exhibits, ¶ 36 provides:

Exhibits – Confidential information in exhibits should be marked as described above. If marking within the text is not feasible, the motion seeking confidential treatment must indicate why the material could not be so marked. If justified, individual pages may be replaced in the public version with a page indicating that confidential material was excluded. However, the public and confidential appendices must be the same length (i.e. a single page in the public version should not indicate the omission of multiple pages from the confidential appendix).

(Initial Order, at 8).

With respect to the Confidential Request Table, ¶ 38 includes the following example:

Confidential Request Table – It is required that a confidential request table be submitted, organizing requests for confidential treatment of exhibits by bates number. The table must include: (1) the bates range for confidential document requests, listed in the order of the bates numbering used for the parties’ appendices; (2) the document’s description; (3) whether confidential treatment is being requested for the entirety of the bates range or only for certain material

marked in both the confidential and public versions; and (4) the legal basis for the confidentiality request. If a bates range in an appendix does not include any confidential information, it should not be listed in the confidential materials list. If a supplemental appendix is later submitted, a new comprehensive confidential bates list must be submitted, which includes the previous list and any additional bates ranges for which confidential material has been requested (resulting in one confidential list for Complainants and one confidential list for Respondents, encompassing all confidentiality requests, always ordered by bates numbers used for the parties' appendices).

Example: [Party Name] Appendix - Bates Table of Confidentiality Requests

<i>Bates Range</i>	<i>Description</i>	<i>Classification Requested for</i>	<i>Basis for Confidentiality Request</i>
CX 12-13	Depo. Transcript of [Name]	Material indicated	Current pricing data
CX 28-29	Agreement dated [dd/mm/yy]	Entire page range	Commercially sensitive rates and terms

(Initial Order, at 8).

b. Commission Rule 5

In addition to the Initial Order, 46 C.F.R. § 502.5 states in pertinent part:

(b) ***Motion for confidential treatment.*** If confidentiality is sought for a filing containing information not previously designated as confidential by the Commission or presiding officer, the confidential filing must be accompanied by a motion justifying confidential treatment. This motion must identify the specific information in a document for which protection is sought and show good cause by demonstrating that the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii). The burden is on the party that wants to protect the information to show good cause for its protection. A motion is not required for information, including personal privacy and financial account numbers, redacted pursuant to § 502.13, Privacy protection for filings made with the Commission. (c) Use of confidential information. Confidential treatment afforded by this section is subject to the proviso that any information designated as confidential may be used by the administrative law judge or the Commission if deemed necessary to a decision in the proceeding. [Rule 5.]

3. Discussion

Respondent submitted two proposed versions of its Appendix, one public and one confidential. Respondent, however, did not submit a motion for confidential treatment.

Respondent is **HEREBY ORDERED** to file a motion for confidential treatment if it wishes its filed materials to be kept confidential. Before filing its motion for confidential

treatment, it is recommended that the parties consult one another regarding which materials should be kept confidential, if any. The motion for confidential treatment is to comply with the Initial Order and the Commission Rules. The motion for confidential treatment is to be filed **no later that September 18, 2026.**

Richard C.
Ambrow Jr -S

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Richard Ambrow
Administrative Law Judge